

22NWCV01643 22NWCV01643

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CP%2C07%2F21%2F2026

Source SHA-256: b4a15454993a4bb4cd7a84fdc47c1ecaf4d34d11b6e4a485c3b7a1f4fff7293c

Case Number: 22NWCV01643 Hearing Date: July 21, 2026 Dept: P

LESLIE M LOPEZ, ET AL. v.

AMERICAN HONDA MOTOR CO., INC.

CASE NO.: 22NWCV01643

HEARING: 07/21/2026 @ 9:30 AM

#10

TENTATIVE ORDER

Defendant American Honda Motor Co., Inc.'s motion to tax costs is GRANTED as to the Post-Offer Costs. The Court taxes \$1,441 in Post-Offer Costs.

Moving party to give notice.

Defendant American Honda Motor Co., Inc. (Defendant) moves to strike and/or tax Plaintiffs Leslie M. Lopez and Francisco Lopez's (Plaintiffs) costs.

Background

This is a lemon law action. On December 19, 2022, Plaintiffs filed a complaint against Defendant and Does 1 through 10 alleging three causes of action under the Song-Beverly Act: (1) breach of express warranty, (2) breach of implied warranty, and (3) section 1793.2, subd. (b).

On November 5, 2025, Plaintiffs filed a Notice of Settlement of Entire Case indicating that the parties agreed to a conditional settlement.

On January 20, 2026, Plaintiffs filed a Memorandum of Costs.

On June 11, 2026, this motion first came on for hearing. The Court granted this motion in part and taxed \$175, denied it in part, and continued it in part. The Court continued this motion to today's date on the issue of Post-998 Offer Costs only and instructed Defendant to file the omitted declaration by July 15, 2026.

On July 2, 2026, Defendant filed the omitted declaration.

Legal Standard

Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (Code Civ. Proc., § 1032, subd. (b).)

“ ‘In ruling upon a motion to tax costs, the trial court's first determination is whether the statute expressly allows the particular item and whether it appears proper on its face. If so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable. [Citation.] Where costs are not expressly allowed by the statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary.’” (Rozanova v. Uribe (2021) 68 Cal.App.5th 392, 400, internal quotations omitted.) “Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. [Citation.] However, because the right to costs is governed strictly by statute [citation] a court has no discretion to award costs not statutorily authorized.” (Ibid.) The objecting party does not meet this burden by arguing that the costs were not necessary or reasonable, but must present evidence and prove that the costs are not recoverable. (Litt v. Eisenhower Med. Ctr. (2015) 237 Cal.App.4th 1217, 1224.)

Allowable costs “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (Code Civ. Proc., § 1032, subd. (c)(2).) “Allowable costs shall be reasonable in amount.” (Code Civ. Proc., § 1032, subd. (c)(3).)

Under Civil Code section 1794, subdivision (d): "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Discussion

As explained above, this ruling pertains to the issue of Post-998 Offer Costs only.

Post-998 Offer Costs

Defendant moves to tax \$1,441.00 in costs reflecting (1) First Legal filing fees from November 5, 2025 totaling \$5.75; (2) Deposition preparation billing entries for Darrell Blasjo dated November 4, 2025 totaling \$1,425.00; and (3) One Legal Filing Fees from November 5, 2025 totaling \$10.25. Defendant contends that these costs were incurred after Defendant's Section 998 Offer which Plaintiffs accepted. Defendant argues that by the terms of the Section 998 Offer, Plaintiffs cannot claim these costs.

Defendant submits a copy of the Section 998 Offer dated October 31, 2025, which Defendant states Plaintiff accepted. (Gideon Decl., ¶ 3, Exh. A.) The Section 998 Offer includes the following text:

AHM will also pay Plaintiffs' statutory costs and expenses under California Civil Code 1794(d), including reasonable attorneys' fees in the amount determined by the Court to have been reasonably incurred by Plaintiffs in connection with the commencement and prosecution of this action to, and including, the date of this Offer.

(Gideon Decl., Exh. A, emphasis added.)

In opposition, Plaintiffs argue that the language into the Section 998 Offer is invalid because it does against the Song-Beverly Act's one-sided cost shifting. Plaintiffs refer to *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-38 to argue that the purpose of awarding "costs

and expenses” under Civil Code section 1794 is to “cover items not included in the detailed statutory definition of ‘costs,’” and thereby “open the litigation process to everyone.” Plaintiffs argue that pursuant to Civil Code section 3513, a law established for a public reason cannot be waived or contravened by a private agreement.

However, Jensen did not address Post-998 Offer costs or agreement terms specifically agreed to by the parties. Plaintiffs do not show that the express terms of the Section 998 Offer run contrary to law. The Court therefore taxes \$1,441 in Post-Offer Costs pursuant to the express terms of the Section 998 Offer.

Accordingly, Defendant’s motion to tax costs is GRANTED as to the Post-Offer Costs. The Court taxes \$1,441 in Post-Offer Costs.

Moving party to give notice.